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Terms of Service

Our terms are changing soon. See [here](#) to view the new terms.

Date of Last Revision: March 26, 2026

Acceptance of These Terms of Service

Suno Inc. ("Suno," "we," "us," or "our") provides our services (described below) and related content to you through our website(s) located at <https://suno.com/> (the "Site"), through any third-party social platforms such as Discord, and through our mobile applications and related technologies ("Mobile Apps", and collectively, such Mobile Apps and the Site, including any content, tools, features, functionality and technology offered on or through our Site or Mobile Apps, the "Service"). All access and use of the Service is subject to the terms and conditions contained in these Terms of Service (as amended from time to time, these "Terms of Service"). By accessing, browsing, or otherwise using the Site, Mobile Apps, or any other aspect of the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service. If you do not accept the terms and conditions of these Terms of Service, you will not access, browse, or otherwise use the Service.

We reserve the right, at our sole discretion, to change or modify portions of these Terms of Service at any time. If we do this, we will post the changes on this page and will indicate at the top of this page the date these Terms of Service were last revised. You may read a current, effective copy of these Terms of Service by visiting the "Terms of Service" link on the Site. We will also notify you of any material changes, either through the Service user interface, a pop-up notice, email, or through other reasonable means. Your continued use of the Service after the date any such changes become effective constitutes your acceptance of the new Terms of Service. You should periodically visit this page to review the current Terms of Service so you are aware of any revisions. If you do not agree to abide by these or any future Terms of Service, you will not access, browse, or use (or continue to access, browse, or use) the Service.

PLEASE READ THESE TERMS OF SERVICE CAREFULLY, AS THEY CONTAIN AN AGREEMENT TO ARBITRATE AND OTHER IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS, REMEDIES, AND OBLIGATIONS. THE AGREEMENT TO ARBITRATE REQUIRES (WITH LIMITED EXCEPTION) THAT YOU SUBMIT CLAIMS YOU HAVE AGAINST US TO BINDING AND FINAL ARBITRATION, AND FURTHER (1) YOU WILL ONLY BE PERMITTED TO PURSUE CLAIMS AGAINST SUNO ON AN INDIVIDUAL BASIS, NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS OR REPRESENTATIVE ACTION OR PROCEEDING, (2) YOU WILL ONLY BE PERMITTED TO SEEK RELIEF (INCLUDING MONETARY, INJUNCTIVE, AND DECLARATORY RELIEF) ON AN INDIVIDUAL BASIS, AND

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our Privacy Policy, located at <https://www.suno.ai/privacy> (the "Privacy Policy"). By using the Service, you consent to our collection, use and disclosure of personal data and other data as outlined therein.

Additional Terms: In addition, when using certain features through the Service, you will be subject to any additional terms applicable to such features that may be posted on or within the Service from time to time. All such terms are hereby incorporated by reference into these Terms of Service.

Access and Use of the Service

Service Description: The Service is designed to process input data, information, and content that you provide in the form of code, video, images, information, data, text, software, music, sound and other audio, photographs, graphics, messages, and other materials and mediums (collectively referred to as the "Submissions") and generate and return audio and visual output based on those Submissions ("Output", and together with the Submissions, "Content"). The Service may include a public forum where Content can be shared in a productive environment with other users.

It is very important that you only upload, post, publish, or display (hereinafter, "upload(ing)") Submissions that you have rights to use and provide hereunder. By uploading any Submission, you represent and warrant that:

- you have, or have obtained, all rights, licenses, consents, permissions, power and/or authority necessary to submit and use (and allow us to use) such Submission in connection with the Service, including for the purpose of generating your Output or Voice Model.
- your Submissions and the use thereof by the Service, including to generate Output and, if applicable, your Voice Model, will not violate any law or any third party's rights, terms and conditions associated with such Submission, and
- no other licenses, permissions, consents or authorizations must be obtained from or payments made to any other person or entity by us (or any third party deriving any rights or obligations from us) arising out of or related to our use of your Submissions, including to create your Output or your Voice Model and/or to train, develop, fine-tune or otherwise improve the Service and any related artificial intelligence or machine learning models.

Suno Chat: As part of the Service, we may make available an artificial intelligence-powered chat assistant known as Suno Chat. You may only use Suno Chat to facilitate your creation and refinement of music and other Output via the Service, and not for any other purpose unless we allow otherwise in writing.

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which to imitate or resemble your voice.

You agree that you can only create a Voice Model resembling your own voice. To be clear – this means that you expressly agree not to create, or attempt to create, a voice model of another person and you will not upload any Submission that includes an audio recording of another person's voice when creating your Voice Model. We reserve the right to remove your Voice Model at any time if we determine in our sole discretion it is not your own voice.

Your Registration Obligations: You may be required to register with Suno or provide information about yourself (e.g., name and email address) in order to access and use certain features of the Service. If you choose to register for the Service, you agree to provide and maintain true, accurate, current, and complete information about yourself as prompted by the Service's registration form. Registration data and certain other information about you are governed by our Privacy Policy. You must be at least 13 years old to use the Service. In addition, if you are under 18 years old, you may use the Service only with the express consent of your parent or guardian, and you agree to provide true, accurate, current, and complete information as requested by Suno to confirm such express consent. We may, but are not obligated to, provide a free tier of the Service. You may not create more than one account to benefit from the free tier of the Service. If we believe you are not using the free tier in good faith, we may stop providing access to the Service. If we discontinue the Service, we will refund you any pre-paid fees on a pro rata basis, based upon the number of months left in the pre-payment period.

Member Account, Password and Security: You are responsible for maintaining the confidentiality of your password and account details, if any, and are fully responsible for any and all activities that occur under your password or account. You agree to (a) immediately notify Suno of any unauthorized use of your password or account or any other breach of security, and (b) ensure that you exit from your account at the end of each session when accessing the Service. Suno will not be liable for any loss or damage arising from your failure to comply with this paragraph.

Modifications to Service: Suno reserves the right to modify, suspend or discontinue, temporarily or permanently, the Service (or any part thereof) with or without notice. You agree that Suno will not be liable to you or to any third party for any modification, suspension or discontinuance of the Service.

General Practices Regarding Use and Storage: You acknowledge that Suno may establish general practices and limits concerning use of the Service, including the maximum period of time that data or other content will be retained by the Service and the maximum storage space that will be allotted on Suno's or its third-party service providers' servers on your behalf. You acknowledge that Suno reserves the right to terminate accounts (and all of their corresponding Submissions and Output) that are inactive for an extended period of time. You

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User Conduct: You are solely responsible for any use of the Service and all Submissions that you make available to Suno, including by uploading Submissions via the Service or by emailing or otherwise making available Submissions to other users of the Service, and for any Outputs or your Voice Model that you generate via the Service. You assume all risk associated with Submissions and your Voice Model, including the transmission thereof, and you have sole responsibility for the accuracy, quality, legality and appropriateness of your Submissions and Voice Model. The posting of Content on the Service by users does not indicate any approval or endorsement by Suno of such Content. Suno is not responsible for, and disclaims, any and all liability in connection with Content or any act of accessing, browsing, contributing to or otherwise using the Service. In no event will you use the Output or your Voice Model to compete with Suno, including to create a competing product or service. The list below provides examples of the kinds of Submissions or uses that are illegal or prohibited by Suno. Suno reserves the right to investigate and take appropriate legal action against anyone who, in Suno's sole discretion, violates this provision, including removing the offending content from the Service, suspending or terminating the account of such violators, and reporting the violator to law enforcement authorities. You agree to not use the Service to:

1. submit, upload, transmit or otherwise make available any Submissions or direct the Services to generate any Output or Voice Model that (i) infringes, violates or misappropriates any intellectual property or other proprietary rights of any party; (ii) you do not have a right to upload and use under any law or under contractual or fiduciary relationships; (iii) contains software viruses or any other computer code, files or programs designed to interrupt, destroy, or limit the functionality of any computer software or hardware or telecommunications equipment; (iv) poses or creates a privacy or security risk to any person; (v) constitutes unsolicited or unauthorized advertising, promotional materials, commercial activities and/or sales, "junk mail," "spam," "chain letters," "pyramid schemes," "contests," "sweepstakes," or any other form of solicitation; (vi) is (or is used for or in connection with any purpose, initiative, activity, product or service that is) unlawful, harmful, threatening, abusive, harassing, tortious, excessively violent, defamatory, vulgar, obscene, pornographic, libelous, invasive of another's privacy, hateful, discriminatory, or otherwise objectionable; or (vii) in the sole judgment of Suno, is objectionable or which restricts or inhibits any other person from using or enjoying the Service, or which may expose Suno or its users to any harm or liability of any type;
2. interfere with or disrupt the Service or servers or networks connected to the Service, or disobey any requirements, procedures, policies, or regulations of networks connected to the Service;
3. violate any applicable local, state, national, or international law, or any regulations having the force of law;

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with an individual who was not the creator thereof);

5. solicit personal information from anyone under the age of 18;
6. post any private information, or otherwise harvest, collect or disclose email addresses or other information about another user or any other person without his or her express consent or for the purposes of sending unsolicited emails or other unsolicited communications;
7. advertise or offer to sell or buy any goods or services for any business purpose that is not specifically authorized;
8. imply that Suno endorses any of your Submissions, Output, Voice Model, statements or positions;
9. further or promote any criminal activity or enterprise or provide instructional information about illegal activities;
10. obtain or attempt to access or otherwise obtain any content or information through any means not intentionally made available or provided for through the Service;
11. use the Services (and any Output or Voice Model) to create, develop or improve any competing products or services or to power, enable or train other artificial intelligence and machine learning models, tools or technologies;
12. circumvent, remove, alter, deactivate, degrade, or thwart any of the content protections in or geographic restrictions on any content (including Service Content (as defined below)) available on or through the Service, including through the use of virtual private networks; or
13. engage in or use any data mining, robots, scraping, or similar data gathering or extraction methods.

If you are blocked by Suno from accessing the Service (including by blocking your IP address), you agree not to implement any measures to circumvent such blocking (e.g., by masking your IP address or using a proxy IP address or virtual private network).

Fees: To the extent the Service or any portion thereof is made available for any fee, you may be required to select a payment plan and provide information regarding your credit card or other payment instrument. You represent and warrant to Suno that such information is true and that you are authorized to use the payment instrument. You will promptly update your account information with Suno or the Payment Processor (as defined below), as applicable, of any changes (for example, a change in your billing address or credit card expiration date) that may occur. You agree to pay Suno the amount that is specified in the payment plan in

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terminate your account, and you further agree to pay any charges so incurred. If you dispute any charges you must let Suno know within sixty (60) days after the date that Suno charges you, or within such longer period of time as may be required under applicable law. Details on our free and paid subscription offerings, including prices for paid subscriptions, are listed at <https://app.suno.ai/account>. We reserve the right to change Suno's prices. If Suno does change prices, Suno will provide notice of the change through the Service user interface, a pop-up notice, email, or through other reasonable means, at Suno's option, at least fifteen (15) days before the change is to take effect. Your continued use of the Service after the price change becomes effective constitutes your agreement to pay the changed amount. You will be responsible for all taxes associated with the Service, other than taxes based on Suno's net income.

Subscription Renewals and Cancellations: You agree that if you purchase a subscription, your subscription will automatically renew at the subscription period frequency referenced on your subscription page (or if not designated, then monthly) and at the then-current rates, and your payment method will automatically be charged at the start of each new subscription period for the fees and taxes applicable to that period. To avoid future subscription charges, you must cancel your subscription seven (7) days before the subscription period renewal date by either cancelling your subscription within the account interface of the Site at <https://app.suno.ai/account> or by telling us via email at billing@suno.ai that you want to cancel your subscription. Following any cancellation by you, you will continue to have access to the paid Service through the end of the subscription period for which payment has already been made.

Free Trial: You can sign up for a trial for the paid portion of the Service and your trial period starts on the day you sign up for the trial and lasts for the duration indicated on your free trial confirmation email (or if not specified, then 7 days). If you are on a trial, you may cancel at any time until the last day of your trial by either cancelling your trial within the account interface of the Site at <https://app.suno.ai/account> or by telling us via email at billing@suno.ai that you want to cancel your subscription. If you do not cancel your trial at the end of your free trial period, and we have notified you that your account will be converted to a paid subscription at the end of the free trial period, you authorize us to charge your credit card or other designated billing method for continued use of the paid Service. You may, however, then cancel your subscription through the methods described above. If you cancel your trial account or decide not to purchase a paid version of the Service at the end of your trial period, your content or data associated with your trial account may no longer be available to you, and Suno may delete or remove any such content or data.

Payment Processing: Notwithstanding any amounts owed to Suno hereunder, SUNO DOES NOT PROCESS PAYMENT FOR ANY SERVICES. To facilitate payment for the Service via bank account, credit card, or debit card, we use Stripe, Inc. and its affiliates ("Stripe"), a third-party payment processor. These payment processing services are provided by Stripe and are

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Stripe Agreements, as the same may be modified by Stripe from time to time. You hereby authorize Stripe to store and continue billing your specified payment method even after such payment method has expired, to avoid interruptions in payment for your use of the Service. Please contact Stripe for more information. Suno assumes no liability or responsibility for any payments you make through the Service.

Refunds and Cancellations: Payments made by you hereunder are final and non-refundable, unless otherwise determined by Suno.

Commercial Use: Subject to the Content Section below, unless otherwise expressly authorized herein or in the Service, you agree not to display, distribute, license, perform, publish, reproduce, duplicate, copy, create derivative works from, modify, sell, resell, grant access to, transfer, or otherwise use or exploit any portion of the Service, and any Output or Voice Model, for any commercial purposes.

Use of the Mobile App: You are responsible for providing the mobile device, wireless service plan, software, Internet connections and/or other equipment or services that you need to download, install and use the Mobile App. We do not guarantee that the Mobile App can be accessed and used on any particular device or with any particular service plan. We do not guarantee that the Mobile App or will be available in, or that orders for our paid Services can be placed from, any particular geographic location. As part of the Services and to update you regarding the status of deliveries, you may receive push notifications, local client notifications, text messages, picture messages, alerts, emails or other types of messages directly sent to you in connection with the Mobile App ("Push Messages"). You acknowledge that, when you use the Mobile App, your wireless service provider may charge you fees for data, text messaging and/or other wireless access, including in connection with Push Messages. You have control over the Push Messages settings, and can opt in or out of these Push Messages through the Services or through your mobile device's operating system (with the possible exception of infrequent, important service announcements and administrative messages). Please check with your wireless service provider to determine what fees apply to your access to and use of the Mobile App, including your receipt of Push Messages from Suno. You are solely responsible for any fee, cost or expense that you incur to download, install and/or use the Mobile App on your mobile device, including for your receipt of push messages from Suno.

Mobile Software from the Apple App Store: The following terms and conditions apply to you only if you are using the Mobile App from the Apple Inc.'s ("Apple") App Store. To the extent the other terms and conditions of these Terms of Service are less restrictive than, or otherwise conflict with, the terms and conditions of this paragraph, the more restrictive or conflicting terms and conditions in this paragraph apply, but solely with respect to your use of the Mobile App from the Apple App Store. You acknowledge and agree that these Terms of Service are solely between you and Suno, not Apple, and that Apple has no responsibility for the Mobile App or content thereof. Your use of the Mobile App must comply with the App

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permitted by applicable law, Apple will have no other warranty obligation whatsoever with respect to the Mobile App, and any other claims, losses, liabilities, damages, costs or expenses attributable to any failure to conform to any warranty will be solely governed by these Terms of Service. You and Suno acknowledge that Apple is not responsible for addressing any claims of yours or any third party relating to the Mobile App or your possession and/or use of the Mobile App, including, but not limited to: (a) product liability claims, (b) any claim that the Mobile App fails to conform to any applicable legal or regulatory requirement, and (c) claims arising under consumer protection or similar legislation. You and Suno acknowledge that, in the event of any third party claim that the Mobile App or your possession and use of that Mobile App infringes that third party's intellectual property rights, Suno, not Apple, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim to the extent required by these Terms of Service. You must comply with applicable third party terms of agreement when using the Mobile App. You and Suno acknowledge and agree that Apple, and Apple's subsidiaries, are third party beneficiaries of these Terms of Service as they relate to your use of the Mobile App, and that, upon your acceptance of these Terms of Service, Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms of Service against you as a third party beneficiary thereof.

Software

Ownership; Restrictions: The technology and software underlying the Service or distributed in connection therewith are the property of Suno, its affiliates, and its licensors (the "Software"). You agree not to copy, modify, create a derivative work of, reverse engineer, reverse assemble, or otherwise attempt to discover any source code, sell, assign, sublicense, or otherwise transfer any right in the Software. Any rights not expressly granted herein are reserved by Suno.

Special Notice for International Use; Export Controls: Suno is headquartered in the United States. Whether inside or outside of the United States, you are solely responsible for ensuring compliance with the laws of your specific jurisdiction. Software available in connection with the Service and the transmission of applicable data, if any, is subject to United States export controls. No Software may be downloaded from the Service or otherwise exported or re-exported in violation of U.S. export laws. Downloading, accessing or using the Software or the Service is at your sole risk.

Intellectual Property Rights

Service Content: You acknowledge and agree that the Service may contain content or features ("Service Content") that are protected by copyright, patent, trademark, trade secret, or other proprietary rights and laws. Except as expressly authorized by Suno or otherwise under these Terms of Service, you agree not to modify, copy, frame, scrape, rent, lease, loan, sell, distribute, or create derivative works based on the Service or the Service Content, in

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Trademarks: The Suno name and logos are trademarks and service marks of Suno (collectively the "Suno Trademarks"). Other company, product, and service names and logos used and displayed via the Service may be trademarks or service marks of their respective owners who may or may not endorse or be affiliated with or connected to Suno. Nothing in these Terms of Service or the Service should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of Suno Trademarks displayed on the Service, without our prior written permission in each instance. All goodwill generated from the use of Suno Trademarks will inure to our exclusive benefit.

Third-Party Material: Under no circumstances will Suno be liable in any way for any content or materials of any third parties (including users), including for any errors or omissions in any content, or for any loss or damage of any kind incurred as a result of the use of any such content. You acknowledge that Suno does not pre-screen content, but that Suno and its designees will have the right (but not the obligation) in their sole discretion to refuse or remove any content that is available via the Service. Without limiting the foregoing, Suno and its designees will have the right to remove any content that violates these Terms of Service or is deemed by Suno, in its sole discretion, to be otherwise objectionable. You agree that you must evaluate, and bear all risks associated with, the use of any content, including any reliance on the accuracy, completeness, or usefulness of such content.

Content: You represent and warrant that you own all right, title and interest in and to Submissions, including all copyrights and rights of publicity contained therein, and that you possess all necessary rights or have obtained all consents necessary to grant Suno the rights and licenses herein. By using the Service or otherwise transmitting Submissions to us, you grant to Suno and our affiliates, successors, assigns, and designees a worldwide, non-exclusive, fully paid-up, sublicensable (directly and indirectly through multiple tiers), assignable, royalty-free, perpetual, irrevocable right and license to use, reproduce, store, modify, distribute, create derivative works based on, perform, display, communicate, transmit and otherwise make available any and all Content (in whole or in part) and any rights you may have in your Voice Model, in each case, in any media now known or hereafter developed, in connection with the provision, use, monetization, promotion, marketing, and improvement of our products and services, including the Service and the artificial intelligence and machine learning models related to the Service. This license to your Content and Voice Model includes a license to your likeness, voice rights and other indicia of your persona that may be embodied in your Content or Voice Model. For the avoidance of doubt, this license authorizes us to make your Content (including Output that incorporates your Voice Model, but, for clarity, not your Voice Model itself) available to and sublicense such Content to other users of the Service as necessary to provide the Service, and you further grant to Suno the worldwide, fully paid-up, sublicensable, assignable, perpetual and irrevocable right to identify to the public (both on and off the Service) that Output (or any of it) was generated via the Service. Such additional uses by Suno and other users of the Service is made without compensation

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that may exist in or in connection with the Content or your Voice Model. You acknowledge that to the extent that you include personally identifiable information in the Submissions, we may republish such information. Although Suno has no obligation to monitor the Content or your Voice Model, you acknowledge and agree that we may do one or all of the following: (i) monitor the Content and your Voice Model; (ii) alter, edit, or remove any Content or Voice Model in whole or in part; or (iii) disclose any Content.

Subject to your compliance with these Terms of Service, if you are a user who has subscribed to the Pro or Premier paid tier of the Service, Suno hereby assigns to you all of its right, title and interest in and to any Output owned by Suno and generated from Submissions made by you through the Service during the term of your paid-tier subscription. However, due to the nature of machine learning, Suno makes no representation or warranty to you that any copyright will vest in any Output.

If you are a user of the free or Basic tier of the Service then, you covenant and agree that you will only use Outputs generated from Submissions made by you through the Service solely for your lawful, internal, personal and non-commercial purposes, provided that you give attribution credit to Suno in each case.

If you are a user that activates features that permit other users of the Service ("Remixers") to remix your Outputs (each, a "Remix"), then you agree that all Remixes shall be a joint work owned jointly and equally by you and the Remixer to the extent that copyright vests in any such Remix. Furthermore, if you are a joint owner of a Remix generated by these Service features, and regardless of whether you are a free Service tier user or a subscriber to a paid Service tier, you additionally covenant and agree that the Remix may only be used for lawful, internal, personal and non-commercial purposes, provided that you give attribution credit to Suno in each case.

For the avoidance of doubt, Output may be publicly available in a third party application such as Discord, where it may be viewable, downloadable, and modified by other users of that third party application. If the Output becomes publicly available in such third-party application, you agree that other users have a right to access, display, view, store, modify, and copy such Output; provided, however, that you may change your settings to bypass these public sharing default settings so that Output generated will remain private.

Due to the nature of machine learning, Output may not be unique across users and the Service may generate the same or similar output for a third party. Other users may provide similar submissions and receive the same output. Output that is requested by and generated for other users is not your Content.

You hereby authorize Suno and its third-party service providers to derive statistical and usage data relating to your use of the Service ("Usage Data"). We may use Usage Data for any purpose in accordance with applicable law and our Privacy Policy.

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You acknowledge and agree that Suno may preserve Content and your Voice Model and may also disclose Content and your Voice Model if required to do so by law or in the good faith belief that such preservation or disclosure is reasonably necessary to: (a) comply with legal process, applicable laws, or government requests; (b) enforce these Terms of Service; (c) respond to claims that any content violates the rights of third parties; or (d) protect the rights, property, or personal safety of Suno, its users, or the public. You understand that the technical processing and transmission of the Service, including Content, may involve (i) transmissions over various networks; and (ii) changes to conform and adapt to technical requirements of connecting networks or devices.

Copyright Complaints: Suno respects the intellectual property of others, and we ask our users to do the same. If you believe that your work has been copied on the Services in a way that constitutes copyright infringement, or that your intellectual property rights have been otherwise violated, you should notify Suno of your infringement claim in accordance with the procedure set forth below.

Suno will process and investigate notices of alleged infringement and will take appropriate actions under the Digital Millennium Copyright Act ("DMCA") and other applicable intellectual property laws with respect to any alleged or actual infringement. A notification of claimed copyright infringement should be emailed to Suno's Copyright Agent at dmca@suno.ai (Subject line: "DMCA Takedown Request"). You may also contact the Copyright Agent by mail at:

Suno Legal, 17 Dunster Street, Floor 4, Cambridge, MA 02138

To be effective, the notification must be in writing and contain the following information:

- a physical or electronic signature of a person authorized to act on behalf of the owner of the copyright or other intellectual property interest that is allegedly infringed;
- identification of the copyrighted work or other intellectual property that you claim has been infringed, or, if multiple copyrighted works or other intellectual property are covered by a single notification, a representative list of such works or other intellectual property;
- identification of the content that is claimed to be infringing or to be the subject of infringing activity, and where the content that you claim is infringing is located on the Service, with enough detail that we may find it on the Service;
- your address, telephone number, and email address;

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of perjury, that you are the copyright or intellectual property owner or are authorized to act on the behalf of the owner of the copyright or intellectual property that is allegedly infringed.

Counter-Notice: If you believe that your content that was removed (or to which access was disabled) is not infringing, or that you have the authorization from the copyright owner, the copyright owner's agent, or pursuant to the law, to upload and use the content, you may send a written counter-notice containing the following information to the Copyright Agent:

- your physical or electronic signature;
- identification of the content that has been removed or to which access has been disabled and the location at which the content appeared before it was removed or disabled;
- a statement by you, made under penalty of perjury, that you have a good faith belief that the content was removed or disabled as a result of mistake or a misidentification of the content to be removed or disabled; and
- your name, address, telephone number, and email address, a statement that you consent to the jurisdiction of the federal court located within Massachusetts and a statement that you will accept service of process from the person who provided notification of the alleged infringement.

If a counter-notice is received by the Copyright Agent, Suno will send a copy of the counter-notice to the original complaining party informing them that Suno may replace the removed content or cease disabling it within ten (10) business days. Unless the owner of the applicable copyrighted work or other intellectual property files an action seeking a court order against Suno or the user, the removed content may be replaced, or access to it restored, within ten (10) to fourteen (14) business days or more after receipt of the counter-notice, at our sole discretion.

Repeat Infringer Policy: In accordance with the DMCA and other applicable law, Suno has adopted a policy of terminating, in appropriate circumstances and at Suno's sole discretion, the accounts of users who are deemed to be repeat infringers. Suno may also at its sole discretion limit access to the Service and/or terminate the accounts of any users who infringe any intellectual property rights of others, whether or not there is any repeat infringement.

Third-Party Services and Websites

The Service may display, include, make available, or provide links or other access to services, sites, software, applications, content, data, technology, and resources that are provided or otherwise made available by third parties (the "Third-Party Services"). Additionally, you may enable or log in to the Service via various online Third-Party Services, such as social media

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respective providers. Some Third-Party Services will provide us with access to certain information that you have provided to third parties, including through such Third-Party Services, and we will use, store and disclose such information in accordance with our Privacy Policy. For more information about the implications of activating Third-Party Services and our use, storage and disclosure of information related to you and your use of such Third-Party Services within the Service, please see our Privacy Policy. Suno has no control over and is not responsible for such Third-Party Services, including for the accuracy, availability, reliability, or completeness of information shared by or available through Third-Party Services, or on the privacy practices of Third-Party Services. We encourage you to review the privacy policies of the third parties providing Third-Party Services prior to using such services. You, and not Suno, will be responsible for any and all costs and charges associated with your use of any Third-Party Services. Suno enables these Third-Party Services merely as a convenience and the integration or inclusion of such Third-Party Services does not imply an endorsement or recommendation. Any dealings you have with third parties while using the Service are between you and the third party. Suno will not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with use of or reliance on any Third-Party Services.

Indemnification

To the extent permitted under applicable law, you agree to defend, indemnify, and hold harmless Suno, its affiliates, and its and their respective officers, employees, directors, service providers, licensors, and agents (collectively, the "Suno Parties") from any and all losses, damages, expenses, including reasonable attorneys' fees, rights, claims, actions of any kind, and injury (including death) arising out of or relating to your use of the Service, any Content, Voice Model or use thereof, your connection to the Service, your violation of these Terms of Service, or your violation of any rights of another, including through your generation or use of any Output or Voice Model. Suno will provide notice to you of any such claim, suit, or proceeding. Suno reserves the right to assume the exclusive defense and control of any matter which is subject to indemnification under this section, and you agree to cooperate with any reasonable requests assisting Suno's defense of such matter. You may not settle or compromise any claim against the Suno Parties without Suno's written consent.

Disclaimer of Warranties

YOUR USE OF THE SERVICE AND ANY OUTPUT IS AT YOUR SOLE RISK. THE SERVICE AND ANY OUTPUT AND VOICE MODEL IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. THE SUNO PARTIES EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

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OR VOICE MODEL WILL NOT INFRINGE THE RIGHTS OF ANY THIRD PARTY; OR (D) THE QUALITY OF ANY PRODUCTS, SERVICES, INFORMATION, OR OTHER MATERIAL PURCHASED OR OBTAINED BY YOU THROUGH THE SERVICE WILL MEET YOUR EXPECTATIONS. YOU ACKNOWLEDGE THAT THE SERVICE USES EXPERIMENTAL TECHNOLOGY AND MAY SOMETIMES PROVIDE INACCURATE OR OFFENSIVE CONTENT THAT DOES NOT REPRESENT THE VIEWS OF THE SUNO PARTIES.

Due to the nature of artificial intelligence and machine learning, your Output may not be unique and the Service may generate the same or similar output for a third party. Other users may provide similar input to the Service and receive the same or similar output from the Service. An input that is submitted by other users is not your Submission, and an output that is requested by and generated for other users is not your Output.

Limitation of Liability

YOU EXPRESSLY UNDERSTAND AND AGREE THAT THE SUNO PARTIES WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY DAMAGES, OR DAMAGES FOR LOSS OF PROFITS INCLUDING DAMAGES FOR LOSS OF GOODWILL, USE, OR DATA OR OTHER INTANGIBLE LOSSES (EVEN IF THE SUNO PARTIES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES), WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE, RESULTING FROM: (A) THE USE OR THE INABILITY TO USE THE SERVICE OR ANY OUTPUT; (B) THE COST OF PROCUREMENT OF SUBSTITUTE GOODS AND SERVICES RESULTING FROM ANY GOODS, DATA, INFORMATION, OR SERVICES PURCHASED OR OBTAINED OR MESSAGES RECEIVED OR TRANSACTIONS ENTERED INTO THROUGH OR FROM THE SERVICE; (C) UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR CONTENT, VOICE MODEL, TRANSMISSIONS OR DATA; (D) STATEMENTS OR CONDUCT OF ANY THIRD PARTY ON THE SERVICE; OR (E) ANY OTHER MATTER RELATING TO THE SERVICE. IN NO EVENT WILL THE SUNO PARTIES' TOTAL LIABILITY TO YOU FOR ALL DAMAGES, LOSSES, OR CAUSES OF ACTION EXCEED THE AMOUNT YOU HAVE PAID SUNO IN THE LAST SIX (6) MONTHS, OR, IF GREATER, ONE HUNDRED DOLLARS (\$100).

SOME JURISDICTIONS DO NOT ALLOW THE DISCLAIMER OR EXCLUSION OF CERTAIN WARRANTIES OR THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES. ACCORDINGLY, SOME OF THE ABOVE LIMITATIONS OR DISCLAIMERS SET FORTH ABOVE MAY NOT APPLY TO YOU OR BE ENFORCEABLE WITH RESPECT TO YOU. IF YOU ARE DISSATISFIED WITH ANY PORTION OF THE SERVICE OR WITH THESE TERMS OF SERVICE, YOUR SOLE AND EXCLUSIVE REMEDY IS TO DISCONTINUE USE OF THE SERVICE.

Dispute Resolution By Binding Arbitration

PLEASE READ THIS SECTION CAREFULLY AS IT AFFECTS YOUR RIGHTS.

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or may arise between you and Suno, whether arising out of or relating to these Terms of Service (including any alleged breach thereof), the Service, any Content, Voice Model, any advertising, or any aspect of the relationship or transactions between us, will be resolved exclusively through final and binding arbitration, rather than a court, in accordance with the terms of this Arbitration Agreement, except that you may assert individual claims in small claims court, if your claims qualify. Further, this Arbitration Agreement does not preclude you from bringing issues to the attention of federal, state, or local agencies, and such agencies can, if the law allows, seek relief against us on your behalf. You agree that, by entering into these Terms of Service, you and Suno are each waiving the right to a trial by jury or to participate in a class action. Your rights will be determined by a neutral arbitrator, not a judge or jury. The Federal Arbitration Act governs the interpretation and enforcement of this Arbitration Agreement.

2. Prohibition of Class and Representative Actions and Non-Individualized Relief

YOU AND SUNO AGREE THAT EACH OF US MAY BRING CLAIMS AGAINST THE OTHER ONLY ON AN INDIVIDUAL BASIS AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE ACTION OR PROCEEDING. UNLESS BOTH YOU AND SUNO AGREE OTHERWISE, THE ARBITRATOR MAY NOT CONSOLIDATE OR JOIN MORE THAN ONE PERSON'S OR PARTY'S CLAIMS AND MAY NOT OTHERWISE PRESIDE OVER ANY FORM OF A CONSOLIDATED, REPRESENTATIVE, OR CLASS PROCEEDING. ALSO, THE ARBITRATOR MAY AWARD RELIEF (INCLUDING MONETARY, INJUNCTIVE, AND DECLARATORY RELIEF) ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF AND ONLY TO THE EXTENT NECESSARY TO PROVIDE RELIEF NECESSITATED BY THAT PARTY'S INDIVIDUAL CLAIM(S), EXCEPT THAT YOU MAY PURSUE A CLAIM FOR AND THE ARBITRATOR MAY AWARD PUBLIC INJUNCTIVE RELIEF UNDER APPLICABLE LAW TO THE EXTENT REQUIRED FOR THE ENFORCEABILITY OF THIS PROVISION.

3. Pre-Arbitration Dispute Resolution

Suno is always interested in resolving disputes amicably and efficiently, and most customer concerns can be resolved quickly and to the customer's satisfaction by emailing customer support at support@suno.ai. If such efforts prove unsuccessful, a party who intends to seek arbitration must first send to the other, by certified mail, a written Notice of Dispute ("Notice"). The Notice to Suno should be sent to 17 Dunster Street, Floor 4, Cambridge, MA 02138 ("Notice Address"). The Notice must (i) describe the nature and basis of the claim or dispute and (ii) set forth the specific relief sought. If Suno and you do not resolve the claim within sixty (60) calendar days after the Notice is received, you or Suno may commence an arbitration proceeding. During the arbitration, the amount of any settlement offer made by Suno or you will not be disclosed to the arbitrator until after the arbitrator determines the amount, if any, to which you or Suno is entitled.

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Arbitration Rules (collectively, the "AAA Rules"), as modified by this Arbitration Agreement. For information on the AAA, please visit its website, <https://www.adr.org>. Information about the AAA Rules and fees for consumer disputes can be found at the AAA's consumer arbitration page, <https://www.adr.org/consumer>. If there is any inconsistency between any term of the AAA Rules and any term of this Arbitration Agreement, the applicable terms of this Arbitration Agreement will control unless the arbitrator determines that the application of the inconsistent Arbitration Agreement terms would not result in a fundamentally fair arbitration. The arbitrator must also follow the provisions of these Terms of Service as a court would. All issues are for the arbitrator to decide, including issues relating to the scope, enforceability, and arbitrability of this Arbitration Agreement. Although arbitration proceedings are usually simpler and more streamlined than trials and other judicial proceedings, the arbitrator can award the same damages and relief on an individual basis that a court can award to an individual under these Terms of Service and applicable law. Decisions by the arbitrator are enforceable in court and may be overturned by a court only for very limited reasons.

Unless Suno and you agree otherwise, any arbitration hearings will take place in a reasonably convenient location for both parties with due consideration of their ability to travel and other pertinent circumstances. If the parties are unable to agree on a location, the determination will be made by AAA. If your claim is for \$10,000 or less, Suno agrees that you may choose whether the arbitration will be conducted solely on the basis of documents submitted to the arbitrator, through a telephonic hearing, or by an in-person hearing as established by the AAA Rules. If your claim exceeds \$10,000, the right to a hearing will be determined by the AAA Rules. Regardless of the manner in which the arbitration is conducted, the arbitrator will issue a reasoned written decision sufficient to explain the essential findings and conclusions on which the award is based.

5. Costs of Arbitration

Payment of all filing, administration, and arbitrator fees (collectively, the "Arbitration Fees") will be governed by the AAA Rules, unless otherwise provided in this Arbitration Agreement. To the extent any Arbitration Fees are not specifically allocated to either Suno or you under the AAA Rules, Suno and you shall split them equally; provided that if you are able to demonstrate to the arbitrator that you are economically unable to pay your portion of such Arbitration Fees or if the arbitrator otherwise determines for any reason that you should not be required to pay your portion of any Arbitration Fees, Suno will pay your portion of such fees. In addition, if you demonstrate to the arbitrator that the costs of arbitration will be prohibitive as compared to the costs of litigation, Suno will pay as much of the Arbitration Fees as the arbitrator deems necessary to prevent the arbitration from being cost-prohibitive. Any payment of attorneys' fees will be governed by the AAA Rules.

6. Confidentiality

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If a court or the arbitrator decides that any term or provision of this Arbitration Agreement (other than the subsection (b) above titled "Prohibition of Class and Representative Actions and Non-Individualized Relief" above) is invalid or unenforceable, the parties agree to replace such term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Arbitration Agreement will be enforceable as so modified. If a court or the arbitrator decides that any of the provisions of subsection (b) above titled "Prohibition of Class and Representative Actions and Non-Individualized Relief" are invalid or unenforceable, then the entirety of this Arbitration Agreement will be null and void, unless such provisions are deemed to be invalid or unenforceable solely with respect to claims for public injunctive relief. The remainder of these Terms of Service will continue to apply.

8. Future Changes to Arbitration Agreement

Notwithstanding any provision in these Terms of Service to the contrary, Suno agrees that if it makes any future change to this Arbitration Agreement (other than a change to the Notice Address) while you are a user of the Service, you may reject any such change by sending Suno written notice within thirty (30) calendar days of the change to the Notice Address provided above. By rejecting any future change, you are agreeing that you will arbitrate any dispute between us in accordance with the language of this Arbitration Agreement as of the date you first accepted these Terms of Service (or accepted any subsequent changes to these Terms of Service).

Termination

You agree that Suno, in its sole discretion, may suspend or terminate your account (or any part thereof) or use of the Service and remove and discard any content (including your Content or Voice Model) within the Service, for any reason in Suno's sole discretion, including for lack of use or if Suno believes that you have violated or acted inconsistently with the letter or spirit of these Terms of Service. Any suspected fraudulent, abusive, or illegal activity that may be grounds for termination of your use of the Service, may be referred to appropriate law enforcement authorities. Suno may also in its sole discretion and at any time discontinue or suspend providing the Service, or any part thereof, with or without notice. You agree that any termination of your access to the Service under any provision of these Terms of Service may be effected without prior notice, and acknowledge and agree that Suno may immediately deactivate or delete your account and all related information and files in your account and/or bar any further access to such files or the Service. Further, you agree that Suno will not be liable to you or any third party for any termination of your access to the Service.

SMS Messaging

Certain portions of the Service may allow us to contact you via telephone or text messages. You agree that we may contact you via telephone or text messages (including by an

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any time, either by texting a reply with the word "STOP" using the mobile device that is receiving the messages, or by contacting legal@suno.ai. If you do not choose to opt out, we may contact you as outlined in our Privacy Policy.

User Disputes

You agree that you are solely responsible for your interactions with any other user in connection with the Service, and Suno will have no liability or responsibility with respect thereto. Suno reserves the right, but has no obligation, to become involved in any way with disputes between you and any other user of the Service.

General

These Terms of Service (together with the terms incorporated by reference herein) constitute the entire agreement between you and Suno governing your access and use of the Service, and supersede any prior agreements between you and Suno with respect to the Service. You also may be subject to additional terms and conditions that may apply when you use Third-Party Services, third-party content or third-party software. These Terms of Service will be governed by the laws of the Commonwealth of Massachusetts without regard to its conflict of law provisions. With respect to any disputes or claims not subject to arbitration, as set forth above, you and Suno submit to the personal and exclusive jurisdiction of the state and federal courts located within Massachusetts. The failure of Suno to exercise or enforce any right or provision of these Terms of Service will not constitute a waiver of such right or provision. If any provision of these Terms of Service is found by a court of competent jurisdiction to be invalid, the parties nevertheless agree that the court should endeavor to give effect to the parties' intentions as reflected in the provision, and the other provisions of these Terms of Service remain in full force and effect. You agree that regardless of any statute or law to the contrary, any claim or cause of action arising out of or related to use of the Service or these Terms of Service must be filed within one (1) year after such claim or cause of action arose or be forever barred. A printed version of these Terms of Service and of any notice given in electronic form will be admissible in judicial or administrative proceedings based upon or relating to these Terms of Service to the same extent and subject to the same conditions as other business documents and records originally generated and maintained in printed form. You may not assign these Terms of Service without the prior written consent of Suno, but Suno may assign or transfer these Terms of Service, in whole or in part, without restriction. The section titles in these Terms of Service are for convenience only and have no legal or contractual effect. As used in these Terms of Service, the words "include" and "including," and variations thereof, will not be deemed to be terms of limitation, but rather will be deemed to be followed by the words "without limitation." Notices to you may be made via either email or regular mail. The Service may also provide notices to you of changes to these Terms of Service or other matters by displaying notices or links to notices generally on the Service. Suno will not be in default hereunder by reason of any failure or delay in the performance of its obligations where such failure or delay is due to civil disturbances, riot, epidemic,

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Please contact us at legal@suno.ai or 17 Dunster Street, Floor 4, Cambridge, MA 02138 to report any violations of these Terms of Service or to pose any questions regarding these Terms of Service or the Service.

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